



Cell Phone Use & Texting Policy Agreement

- device, or other momentary delays is also presumed to be engaged in a call
- a commercial vehicle driver who holds a portable electronic device in a conspicuous manner while the vehicle is temporarily stationary because of traffic, a traffic control device, or other momentary delays is presumed to be using the device.

Mauro Rile
Bonnie E. Spidess

Employee Signature

10/20/21
10/19/21

Date



Company Vehicle Safety & Usage Policy Agreement

Employee Name: Renee Spielberger

Driver's License Number: 606176805

Location: Rochester, NY

Car License Plate Number: HJZ4174

Johnstone Supply of CNY provides vehicles for business use to allow employees to drive on company-designated business according to the guidelines below. The company retains the right to amend or terminate this policy at any time. The term "vehicle," as used in these guidelines, includes, but is not limited to, cars, trucks, and vans.

- Employees may not drive any business vehicles without prior approval of their manager. Prior to approving a driver and periodically thereafter, managers/HR must check the employee's driving record. Employees approved to drive on company business are required to inform their manager of any changes that may affect either their legal or physical ability to drive or their continued insurability.
- Employees holding jobs requiring regular driving for business as an essential job function must, as a condition of employment, be able to meet the driver approval standards of this policy always. Maintain a valid driver's license and remain fully insurable. Wear a seat belt and require passengers to wear their seat belts.
- Employees who drive a vehicle on company business must, in addition to meeting the approval requirements above, exercise due diligence to drive safely and to maintain the security of the vehicle and its contents. Use of handheld cell phones (including texting) while behind the wheel of a moving vehicle being used on company business is **strictly prohibited**. Employees are responsible for any driving infractions or fines because of their driving. Operate the vehicle in a safe, defensive manner, and obey all traffic laws.
- Nonemployees and nonbusiness passengers (i.e., family and friends) are prohibited from riding in company vehicles.
- Employees must report any accident, theft or malicious damage involving a company vehicle to their manager and the Human Resources Department, regardless of the extent of damage or lack of injuries. Such reports must be made as soon as possible but no later than 48 hours after the incident. Employees are expected to cooperate fully with authorities in the event of an accident. However, employees should make no voluntary statement other than in reply to questions of investigating officers.
- Employees who are on call on a 24-hour basis may be allowed to take a company vehicle home so they can respond as soon as possible. Such employees need to provide a written acknowledgment that they fully understand that the vehicle is used only as



Company Vehicle Safety & Usage Policy Agreement

part of emergency response and not for personal use.

- Employees are not permitted, under any circumstances, to operate a company vehicle or a personal vehicle for company business when any physical or mental impairment causes the employee to be unable to drive safely. Additionally, employees shall not operate any company vehicle at any time or operate any personal vehicle while on company business while using or consuming alcohol, illegal drugs or prescription medications that may affect their ability to drive. These prohibitions include circumstances in which the employee is temporarily unable to operate a vehicle safely or legally because of impairment, illness, medication, or intoxication.
- Employees will not alter the vehicle unless authorized by Johnstone Supply of CNY management. Examples include:
 - A. Installation of stereos, amplifiers, radar detectors
 - B. Installation of trailer hitches for personal use
 - C. Aftermarket accessories such as bug deflectors, window tinting, running boards and visors
 - D. Personalized or vanity license plates

Operating expenses and reimbursement

All purchase of routine maintenance such as oil change and tire repair costs associated with using the vehicle for work are the responsibility of the employee. See Personal Maintenance Log for complete list.

Johnstone Supply of CNY will reimburse the employee for parking, and toll costs, unless you are qualified for a company provided EZ-Pass, associated with work-related vehicle use.

The employee will submit a mileage expense report, unless you are qualified for a company provided gas card, and Johnstone Supply of CNY will reimburse for work-related use at a rate of \$0.55 per mile for normal highway use.

Johnstone Supply of CNY reserves the right to withdraw this privilege at any time.

I, Lennie Spielberger have read and understand the *Vehicle Safety & Usage Policy Agreement* established by Johnstone Supply of CNY. I agree to abide by the provisions of this policy. I understand that violation of this policy will result in disciplinary action, up to and including termination of employment.



Company Vehicle Safety & Usage Policy Agreement

Signatures

I have read and understand the terms and conditions of this policy and agree to comply with them.

Bonnie E. Beichler
Employee Signature

10/19/21
Date

Memo Kuhn
Manager Signature
on behalf of Johnstone Supply of CNY

10/20/21
Date

Attachments: Safe Driving Practices, Cell Phone Usage & Texting While Driving, Distracted Driving, Vehicle Emergency Kit List, Report of Motor Vehicle Accident, Expense Report, Form, Personal Distracted Driving, Monthly Vehicle Checklist, Vehicle Maintenance Log



Distracted Driving

The Number One Contributing Factor to Motor Vehicle Crashes in New York State

According to a study conducted by the National Highway Traffic Safety Administration (NHTSA), driver inattention is defined as one of the following:

- Driver engagement in secondary tasks
- Driver drowsiness
- Driving-related inattention to the forward roadway
- Non-specific eye glance away from the forward roadway

In recent years, the most frequent form of distraction while driving has been due to cell phone use and texting. Almost 80% of crashes and 65% of near crashes in this study involved the driver looking away from the forward roadway just prior to the crash:

- Looking away for two or more seconds will double the risk of a crash or near crash.
- Driver inattention due to drowsiness will increase the risk of a crash or near crash by at least four times.
- A driver who is engaged in a secondary task while driving also increases their risk factor.
- The following actions: talking, listening or dialing a hand-held device; inserting or retrieving a compact disc; operating a PDA; reading, applying makeup or eating will increase the driver risk factor of a crash or near crash by two to three times.

Employee Signature

Date



Monthly Vehicle Checklist

Fuel Level, Gauges, and Dash Warning Lights					
Windshield Wipers					
Horn					
Head Lights, Taillights, Turn Signals, Flashers, Warning Lights					
Defrosters, Heaters and Air Conditioner [when applicable]					
Seat Belts					

Wm. R. R.
James E. Speck
Employee Signature

10/20/21
10/19/21
Date

Return completed form to HR each month and you will receive the next month's form. HR@johnstonehvaac-ny.com.



Safe Driving Practices for Employees

You are your employer's most valuable asset! The way that you drive says everything about you and your company. Make a positive statement by following these work-related safe driving practices.

Stay Safe

- Always use a seat belt – driver and passenger(s).
- Be well-rested before driving.
- Avoid taking medications that make you drowsy.
- Set a realistic goal for the number of miles that you can drive safely each day.
- If you are impaired by alcohol or any drug, do not drive.

Stay Focused

- Driving requires your full attention. Avoid distractions, such as adjusting the radio or other controls, eating, or drinking, and talking on the phone.
- Continually search the roadway to be alert to situations requiring quick action.
- Stop about every two hours for a break.
- Get out of the vehicle to stretch, take a walk, and get refreshed.

Avoid Aggressive Driving

- Keep your cool in traffic!
- Be patient and courteous to other drivers.
- Do not take other drivers' actions personally.
- Reduce your stress by planning your route ahead of time (bring the maps and directions), allowing plenty of travel time, and avoiding crowded roadways and busy driving times.

[Handwritten signature]
[Handwritten signature]

Employee Signature

10/20/21
10/19/21

Date